

Vikram Goswami vs The State Of Bihar on 27 July, 2023

Author: Chandra Shekhar Jha

Bench: Chandra Shekhar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.23054 of 2023
Arising Out of PS. Case No.-124 Year-2022 Thana- BAUNSI District
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VIKRAM GOSWAMI Son of Shri Suryanand Goswami Resident of Village -
Gidhwas, Ward No.- 6, P.S.- Raniganj, District - Araria.

Versus

The State of Bihar.

... .. Opposite Party/s

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Appearance :

For the Petitioner/s : Mr.Sanjay Kumar Sharma, Advocate
For the Opposite Party/s : Mr.Kumar Veerendra Narayan, APP

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CORAM: HONOURABLE MR. JUSTICE CHANDRA SHEKHAR JHA
ORAL ORDER

3 27-07-2023

Heard learned counsel appearing on behalf of the petitioner and learned counsel appearing on behalf of the State.

2. Let the defect(s), if any, be removed within a period of four weeks from today.

3. The petitioner seeks bail in connection with Bausi P.S. Case No. 124 of 2022 registered for the offence under Section 394 of the Indian Penal Code and Section 27 of the Arms Act and later on Section 302 of the Indian Penal Code added.

4. The accused/petitioner is not named in the F.I.R. and is in custody since 09.12.2022.

5. The allegation against the petitioner is to commit robbery alongwith other co-accused persons and while committing so taken away cash of Rs. 50,000/- which was in Patna High Court CR. MISC. No.23054 of 2023(3) dt.27-07-2023 possession of informant.

6. Learned counsel appearing on behalf of the petitioner submitted that the name of petitioner surfaced during the course of investigation on the basis of confessional statement of co-accused, namely, Md. Tanvir, where in furtherance of no incriminating material recovered/surfaced as to connect petitioner prima facie with the present occurrence of robbery. It is also pointed out that

petitioner not put on TIP. While concluding the argument, it is submitted that petitioner found involved in two more criminal cases, where he is on bail and moreover, investigation of this case is completed, for which charge-sheet has been submitted, as such, there is no chance of tampering with the evidence.

Learned APP, opposes the prayer of bail.

Considering the facts and circumstances as mentioned above as save and except suspicion arises out of confessional statement, no incriminating material recovered/surfaced as to connect petitioner prima facie with present occurrence of robbery, coupled with the fact that charge-sheet has already submitted, where petitioner is in custody since 09.12.2022, accordingly, petitioner above named, is directed to be released on bail in connection with Bausi P.S. Case No. 124 of 2022 on Patna High Court CR. MISC. No.23054 of 2023(3) dt.27-07-2023 furnishing bail bond of Rs.10,000/- (Rupees Ten Thousand) with two sureties of the like amount each to the satisfaction of learned Chief Judicial Magistrate, Araria/concerned Court, subject to the conditions as mentioned under Section 437(3) of the Cr.P.C.

(Chandra Shekhar Jha, J) veena/-

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